

Council Meeting
September 13, 2023
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Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

The Claremont City Council held a meeting on Wednesday, January 8, 2023, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Spencer Batchelder
At-Large Councilor Matthew Mooshian
Mayor Dale Girard

Also present:

Yoshi Manale, City Manager

AGENDA CHANGES

Pulling Ordinance 612 for administrative purposes will be moved to the next Council meeting on September 27th.

REPORT OF THE SECRETARY

A motion was made by Councilor Koloski and seconded by Assistant Mayor Matteau to accept the minutes of the August 23, 2023, City Council meeting.

Voice vote:

O’Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges – Yes

Contois - Yes

Mooshian – Yes

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Girard - Yes
Motion carried 9-0

MAYOR'S NOTES

Thursday, Sept 14th mobile food pantry (while supplies last) will be parked at Runnings on Washington Street.

Saturday, September 16th The 9th Annual Brewfest will take place at the Visitors Center. Events starting at 11:30am.

Tuesday, September 19th Supervisor checklist will be in session at the City Clerk office from 7:00-7:30 for registering new voters and making any corrections. The filing for November Municipal elections will open September 20th and close September 29th. You must be a registered voter and can file at the City Clerk office at any time.

Thursday, September 21st The Claremont School Board is hosting an Open Listening Session for the Public Regarding Public School Standards. The session will be held in the Stevens High School Auditorium starting at 6:30p.m.

Friday, September 22nd The Ink Factor will be hosting a Clean-up Day starting at their facility on water street, please contact The Ink Factory for more information.

Sunday, September 24th at 2:00 p.m. the Fiske Free Library will host New Spirits of Claremont Cemetery walk.

CITY MANAGER'S REPORT

Manager Manale shared the Claremont Community Center is finalizing costs for purchasing the diving board base with hopes of installation this winter. A Council tour will be scheduled once the new gym equipment is in.

Manager Manale gave an update on DPW removing some of the trees in the downtown area.

Broad Street traffic Layout- when the TAC will let the council know and public.

Manager Manale stated the Fire department has begun updates to their bathrooms to make them unisex, this project should be completed this winter.

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Manager Manale recognized DPW and The Log Cabin Nursery have done a fantastic job of cleaning the brush along the Sugar River. During the clean up the Police were able to recover several bikes and the department will be working on trying to connect them to their owners, if not they will be in the upcoming bike auction in the spring.

Manager Manale stated the Police have stepped up patrols during the night hours in the parking garage and dispatch continues to monitor the cameras to ensure the safety of the residents and users.

Manager Manale states DPW plans to make some lighting upgrades and adding new cameras in critical spots, in addition we plan to purchase emergency button kiosks with additional light and camera options. There are already panic buttons in the garage that will be made more visible.

Manager Manale congratulated DPW as they recently won the Granite state World Water Meter Toss.

Mayor Girard brought discussion to Council for questions.

Assistant Mayor Matteau asked for clarification on the trees being taken down.

Councilor O’Hearne personally thanked the Highway and Police department on the great job they did on North Street.

Councilor Koloski gave praise to DPW for quick responses during and after the last storm. Councilor Koloski inquired about a donation for the 250th Celebration.

Director Mulholland responded to Councilor Koloski and explained where funds were deposited.

Councilor Koloski asks about the audit.

Director Mulholland shared as of Monday the Auditor was still working on the single audit, once that is wrapped up then we will be given a final audit.

Councilor Koloski expressed concern if the Foxwoods trip through the Parks and Recreation Department will be covering expenses.

Manager Manale explained the last trip broke even.

Councilor Contois personally praised for DPW, Fire Department, Police Department.

Councilor Contois questions on regulations on Welfare department report and asked for an explanation at a future meeting.

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Manager Manale stated he will ask the Director of Welfare to attend the meeting in two weeks.

APPOINTMENT TO BOARDS AND COMMITTEES

Parks and Recreation Commission

A motion was made by Councilor Stone and seconded by Assistant Mayor Matteau to appoint Allyn Girard to Seat 3 – At Large of the Parks and Recreation Commission.

Voice vote:

O’Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges – Yes

Contois - Yes

Mooshian - Yes

Girard - Yes

Motion carried 9-0

Fiske Free Library Board of Trustees

A motion was made by Assistant Mayor Matteau and seconded by Councilor Batchelder to re - appoint Cindi Cleveland to Seat 2 on the Fiske Free Library Board of Trustees.

Voice vote:

O’Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges – Yes

Contois - Yes

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Mooshian - Yes
Girard - Yes
Motion carried 9-0

A motion was made by Councilor O’Hearne and seconded by Councilor Stone to re - appoint Sharon Wood to Seat 3 on the Fiske Free Library Board of Trustees.

Voice vote:
O’Hearne – Yes
Batchelder - Yes
Stone - Yes
Matteau - Yes
Koloski - Yes
Limoges – Yes
Contois - Yes
Mooshian - Yes
Girard - Yes
Motion carried 9-0

CITIZEN’S FORUM

Mayor Girard reminded all citizens may speak for 5 minutes on non-agenda items, and asked to announce their name and ward.

Robert Davis, Ward I- Sugar River Drive – voiced concerns of road conditions. Avenue is dirt road.

Manager Manale stated he will touch base with DPW to see where Sugar River Drive falls on the repair schedule.

Robert Davis, Ward I- expressed frustration with the Puckshire Avenue dirt road.

Mayor Girard reminded citizens may speak for 5 minutes.

Reb Mackenzie Ward II- City Planner deForest for recognizing the proposal to develop a massive C&D transfer station off of Maple Avenue is not allowed under the City’s zoning Ordinance. Thank you to City Zoning Board. Read Letter.

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Judith Koester Ward II- Read a letter in Support and stands by the decision of not allowing the C&D transfer station.

Roberta Hood, Ward I- Follow up on Handicap ramp, inquiring what side of the building. Asked if the city is planning on fixing the alley way. Thank you to the Opera House for making accommodations for her mother.

Don Davis, Ward I- explained he is Training technician and DOT certified. Last Spring Dirt Pile discussion. The Property that abuts his on Case Hill Road wetland, DPW with a green truck (took pictures), filling in flood plain.

Hope Damon State Representative – Giving a brief report - road damage, Medicaid and private insurance – Diabetes under all circumstances- Glucose monitoring. Housing crisis, Special Education funds, Mayor Girard Listening session at Stevens High School 6:30 306 Rules.

Mayor Girard closed Citizens

OLD BUSINESS

NEW BUSINESS

PILOT Update

Mr. Mcarthy explained the PILOT.

Councilor Contois asked for clarification on what the flat rate was.

Mr. McCarthy gave an explanation on the percentages.

Manager Manale explained what a PILOT is. Tax exempt properties.

Memorandum

To: City Manager, Yoshi Manale

From: Bob McCarthy, Contract Assessor

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Date: 2023-09-13

Re: 2023 PILOT Agreement Status Update

A summary spreadsheet of all PILOT agreements is included with this memo. We currently have 20 agreements in place. 16 are executed and in force. 2 (Twin State Makerspace and Claremont Learning Partnership) are being negotiated. Sullivan County (Sober House) has agreed to our proposal to continue the same payment for another 5 years, we are awaiting the return of their signed document. Turning Points Network has executed their agreement for their new property at 231 Broad Street for \$6,000 per year. Of the 2 properties still being negotiated, they both have circumstances limiting their cash flow this year, and we have asked them about possible escalations over time. Please refer to the updated spreadsheet dated today. All payments and due dates are included.

Thank You

Bob McCarthy

Contract Assessor

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2023 PILOTS STATUS MOST INFORMATION IS FROM LAST FULL TAX YEAR 2022 AS OF 9/7/2023.							
Muni #	Account	Map/Lot	Name	Assessment	Bill Amount	Rate(s)	Term
000209	5700	69/58	Pathways of the River Valley	\$375,500	\$5,636.26	City Portion Only	4-1-2015 to 3-31-2025
000209	37133	72/5	Pathways of the River Valley	\$93,200	\$1,398.93	City Portion Only	4-1-2015 to 3-31-2025
000039	1070	107/2	SCS Management *	\$508,700	\$7,635.59	City Portion Only	4-1-2020 to 3-31-2030
000039	39931	165/22	SCS Management *	\$536,300	\$8,049.86	City Portion Only	4-1-2020 to 3-31-2030
000039	41440	154/100	SCS Management *	\$284,500	\$4,270.35	City Portion Only	4-1-2020 to 3-31-2030
000374	1120	119/355	SCS Management *	\$223,300	\$3,351.73	City Portion Only	4-1-2020 to 3-31-2030
	1220	119/356	SCS Management *	\$137,300	\$2,060.87	City Portion Only	4-1-2022 to 3-31-2030
	250 & 240	107/37 & 107/228	Claremont Learning Partnership	\$762,000	\$1,000.00	Flat Rate	Board of Directors agreed to \$1,000.
000025	30542	130/121	Claremont Senior Center	\$541,800	\$1,000.00	Flat Rate - \$1,000	4-1-2022 to 3-31-2026
000134	3090	120/68	Turning Points Network 11 School St	\$186,400	\$1,664.55	1/2 Non-School Rate	4-1-2021 to 3-31-2030
000209	18290	132/54	Turning Points Network 231 Broad St (Reno 2023)	\$470,800	\$6,000.00	Flat Rate - \$6,000	4-1-2023 to 3-31-2028
000286	5170	120/108	Stepping Stone	\$160,600	\$750.00	Flat Rate - \$750	4-1-21 to 3-31-2030
000014	18270	132/51	Claremont Housing Authority	\$2,771,400	\$25,746.56	10% Rent	11-14-1967 to ??
000068	23655	143/1	Senior Citizens Housing	\$3,159,800	\$33,867.65	10% Rent	6-30-2021 to 4-30-2030
001641	4187	119/348/1	TwinState MakerSpaces, Inc.	\$277,400	\$3,000.00	Flat Rate - \$3,000	4-1-2018 to 3-31-2023
001767	2490	120/37	County of Sullivan - Sober House	\$886,500	\$12,000.00	Flat Rate - \$12,000	4-1-2021 to 3-31-2024
001801	5003	69/63	Sweetwater Hydroelectric LLC **	\$325,000	\$4,000.00	See Notes**	
001640	580	119/364	Sugar River Power LLC** d/b/a Lower Valley Hydro **	\$308,600	\$4,000.00	See Notes**	
001640	501 and 9281	119/366 and 107/71	Sugar River Power LLC**	\$1,363,600	\$15,788.63	See Notes**	
001842	90007	999/7	Great River Hydro LLC; Flowage Rights	\$1,300,000	\$33,657.00	See Notes***	12-15-2021 to 12-15-2027
Total				\$14,672,700	\$174,877.98		
2022 TAX RATE							
Amount being negotiated				\$2,396,700	\$22,000		
City		\$0.01501					
Non-School		\$0.01786					
Full		\$0.04098					
NOTES: * Invoice SCS Management on separate invoices for each PILOT ** See separate tabs for Hydro gross revenue numbers - there are minimum amounts per contract 999/7 *** Flat Rate - payable in two installments of \$16,828.50. Due July 1 and December 1 ***Great River Hydro= \$16,828.50 due July 1st and \$16,828.50 by December 1st							

Reevaluation Update

Mr. Whalen explained reevaluation.

Mayor Grard inquired how soon tax payers can expect a letter.

Mr. Whalen stated the process of sending out letters within two to three days.

Manager Manale stated to not use current tax rate when you get your new numbers.

Councilor Limoges inquired when the state will set the tax rate.

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Ordinance 613

Director Mulholland explains Ordinance #613.

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY THREE

ORDINANCE #613

Claremont City Code Amendments

The City of Claremont Ordains:

Pursuant to Chapter 1, Section 1-9, the Claremont City Code is hereby amended as follows:

Section 1. Chapter 2, Administration, Article III, Division 13, Section 2-360.

Amend section 2-360 as follows:

Sec. 2-360. - Fiscal year.

(a)The fiscal year of the city shall commence on July 1 and end on June 30 of the following year. This fiscal year shall be used for purposes of making appropriations and for financial reporting and shall be uniformly adopted by all departments of the city.

(b)The city adopts the system for the semi-annual collection and billing of taxes provided for by RSA 76:15-a.

(Ord. No. 262, § 24.5, 1-11-89; Ord. No. 445, 9-10-03; Ord. No. 529, § 1, 9-12-2012)

Section 2. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 3, Article III, Division 13, Section 2-360- Fiscal Year of the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 3. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

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Section 4. Effective Date

This Ordinance shall take effect and be enforced or implemented immediately upon passage.

A motion was made by Councilor Contois and seconded by Councilor Stone to Pass Ordinance 613 to a second reading at the next Council Meeting September 13, 2023.

Councilor Contois read Explanation of proposed action into the record.

Mayor Girard opened a public hearing

Roberta Hood Ward I- stated she does not agree with the proposed billing cycle for the city to stay with the quarterly billing. Easier to have 4 due dates to work with.

Davis Ward I- stated he did not agree with going back to the semiannual billing.

Mayor Girard closed the public hearing and brought discussion back to council.

Councilor Koloski wanted clarifications on breaking up payments.

Director Mulholland mentioned looking into elderly assistance.

Assistant Mayor Matteau Breaks down the first payment cycle.

Roll call:

O'Hearne – No
Batchelder - Yes
Stone - Yes
Matteau - Yes
Koloski - Yes
Limoges – Yes
Contois - Yes
Mooshian - Yes
Girard - Yes
Motion carried 8-1

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Tree Policy

Gary Dickerman Ward 3 Chair of Conservation Commission explains Handout.

Councilor stone stated DPW is the most viable division of the city to oversee this process.

Councilor Contois liked the way it was, wants to move that it is rejected and send it back to the Policy Committee.

Councilor Stone stated this policy is a good compromise.

Councilor O’Hearne shared Policy committee has had the discussion; City manager has come to a compromise.

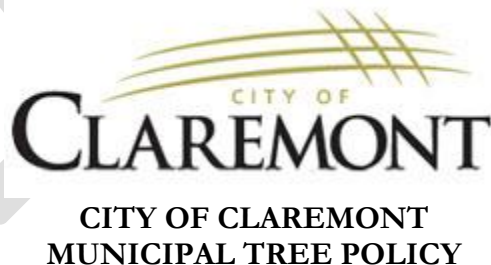
Councilor Limoges would like to have certified tree personnel.

Gary Dickerman explains what a certified arborist is.

Councilor Koloski states he supports the switch to DPW. Councilor Koloski inquires how one would go about reporting nuisance trees.

City Manager Manale explains the steps to report nuisance trees and how the City determines how they come down.

Assistant Mayor Matteau is in favor of keeping of an arborist.



Pursuant to this policy as established by the City Council of the City of Claremont, New Hampshire:

Section 1. Findings

The City of Claremont recognizes:

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1. The importance of trees to our community and our environment;
2. That healthy trees reduce air and noise pollution, provide energy-saving shade and cooling, and contribute to the beauty and attractiveness of Claremont;
3. That our community's trees present a positive image and contribute to Claremont's quality of life;
4. That trees provide habitat for nesting birds, a variety of mammals, insects, and other wildlife;
5. Good tree management strives to keep public areas safe and clear of obstructions while maintaining healthy, vigorous, and attractive trees;
6. Its commitment to preserving its trees to the extent possible.

The City of Claremont further recognizes that [it has a statutory obligation to maintain its streets and highways \(RSA 231:33\)](#). As part of this obligation, the public right-of-way must be kept clear of obstructions, not only in the interests of safe passage for the traveling public, but also for the operation of below-ground public utilities such as water, sewer, and stormwater systems.

Section 2. Purpose.

The purpose of this policy is to:

1. Identify roles and responsibilities of those parties responsible for the implementation of this Policy;
2. Protect the City from liability;
3. Define local language as it pertains to trees;
4. Demonstrate the City's commitment to its trees and forests;
5. [Outline the procedure and practices to be used in the routine protection, maintenance, management, control, and removal, as may be necessary, of vegetation, including trees, in, on, below, and over the City's:](#)
 - a. public streets and sidewalks;
 - b. cemeteries; and
 - c. parks and recreation areas.

[This policy does not apply to removing vegetation due to, or associated with, emergencies resulting from such events as snow or ice storms, wind, lightning, floods, or other natural occurrences.](#)

This policy does not apply to trees located wholly on private property that are not either a nuisance or a hazard as defined in Section 4 of this policy and as declared by the appropriate Director.

Section 3. Authority and power.

(a) *Delegation of authority and responsibility.* Full authority and responsibility for implementation of this policy shall be delegated as follows:

1. City Center trees shall be overseen by the Director of the [Public Works](#) Department (See [Appendix A](#) or [City Center map](#))

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2. Trees in or upon municipal streets and rights-of-ways outside of the City Center and trees in [public cemeteries](#) shall be overseen by the Director of the Public Works Department;
 3. The Director of the Parks and Recreation Department shall oversee trees in City parks and within the Rail Trail right-of-way;
 4. Trees in the City's designated forests shall be the combined responsibility of the Directors of the Public Works, Planning and Development, and Parks and Recreation Departments with guidance from the [Forest Management Plan](#).
- (b) *Appropriate Remedial Action.* Directors shall have the authority to take appropriate remedial action toward trees that said Director has determined:
1. to be a nuisance or hazard (as defined in [Section 4](#) of this Policy);
 2. poses a threat to any:
 - a. electrical or telephone lines;
 - b. municipal water or sewer line;
 - c. municipal sidewalk;
 3. poses an imminent threat to headstones in a public cemetery;
 4. are seriously affected by fungus, insects, or other pest disease (following consultation with an appropriate certified tree professional.)

Appropriate remedial action may include completely removing a tree or trees or pertinent parts. It also includes the removal of invasive trees within the Director's jurisdiction.

Section 4. Definitions.

As used in this Article, the following words and phrases shall have the meanings indicated:

Certified Tree Professional — A natural person who holds a current certificate from the International Society of Arboriculture and who is covered by a general liability insurance policy of at least one million dollars

Damage – any injury to or destruction of a tree, including but not limited to uprooting; severance of all or part of the root system or main trunk; storage of material on or compaction of surrounding soil; a substantial change in the natural grade above a root system or around a trunk; surrounding the tree with impervious paving materials; or any trauma caused by accident or collision.

Hazard – any tree, or limb thereof that may be located on public or private property that is:

- Seriously affected by fungus, insects, or other pest disease, dead, or dying **AND** is endangering public property **OR**
- threatens public health, safety, and welfare.

Nuisance – any tree or limb may be located on public or private property that obstructs the view of traffic signs or the free passage of pedestrians or vehicles or extends into a City-owned right-of-way at a height less than 14 feet above the ground. (Provisions of [RSA 236:39](#) may also apply.)

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Parkway – the area along a public street between the curb and the sidewalk; or, if there is no curb or sidewalk, the unpaved portion of the area between the street right-of-way line and the paved portion of the street or alley. (See [Appendix B](#))

Public property – all grounds and rights-of-way (ROWs) owned or maintained by the City.

Public tree – any tree or woody vegetation on city-owned or city-maintained property. Trees within a publicly-owned right-of-way belong to the underlying property owner and are not considered public trees within the context of this policy.

Right-of-way – The right-of-way typically encompasses both the paved/graveled areas for the use of vehicles plus strips of land along each side where shoulders, curbs, sidewalks, or drainage swales exist. These strips of land that abut the traveled portion of the road may appear to be private property but are regulated by the City in the interests of public health and safety.

Significant tree(s) – any tree or stand of trees on lands owned by the city or any land upon which easements are imposed for the benefit of the city, with historical or cultural value, or which, by reason of its age, rarity, location, size, aesthetic quality or native status that the conservation commission has designated as worthy of preservation. The Conservation Commission is responsible for maintaining the inventory of all significant trees.

Top or Topping – the non-standard practice of cutting back limbs to stubs within a tree's crown to such a degree as to remove the normal canopy and disfigure the tree.

Section 5. Declaration of Hazard or Nuisance.

The City may not remove trees and bushes located on private property outside of the right-of-way unless they pose a safety hazard to the public or impede the ability to maintain the right-of-way; however, the City may cut any limbs in the air or roots on or under the ground that intrude into the right-of-way, even if the trunk of the tree is outside the right-of-way if such growth creates a public nuisance by way or damage to City improvements on or under the right-of-way or creates a safety hazard.

Prior to any action, the Director must determine whether or not a tree or limb thereof constitutes a nuisance or hazard as defined in [Section 4](#) of this Policy. Upon such determination, the following actions may be taken:

- (a) Nuisance limbs may be removed at the sole discretion of any Director.
- (b) Nuisance trees with a trunk diameter of 16 inches or greater at a point 4 feet above the ground can only be removed in their entirety with prior consultation with a certified tree professional. If the certified tree professional concurs that the tree should be removed, then:
 - i. Abutting property owners must be notified via certified mail by the Director at least one week prior to the tree's removal except when the delay entailed by such notice would pose an imminent threat to public safety (see [Section 5\(d\)](#))
 - ii. Abutting landowner(s) has/have 30 days to appeal the matter to the City Council if they disagree with the proposed removal.
 - iii. Abutter(s) has/have the option of hiring their own certified tree professional to prove an opposing opinion.
 - iv. The Conservation Commission shall also be notified simultaneously with the abutter(s).

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- (c) Nuisance trees with a trunk diameter of less than 16 inches at a point 4 feet above the ground do not require consultation with a certified tree professional before removal.

Removal of these trees does not require advanced notice to abutters, but the Director must receive written permission from abutter(s) who may have planted any protective shrubbery, shade, or fruit trees before removing them, unless dead, damaged beyond recovery, diseased, or considered a public safety hazard (see [Section 5\(d\)](#)).

- (d) Hazard limbs and trees may be removed in an emergency at the Director's sole discretion.

Emergency means snow or ice storms, wind, lightning, other natural occurrences, or isolated incidents such as vehicle impact to a tree.

Section 6. Significant Trees

Notwithstanding any provisions of this Claremont Municipal Tree Policy, any tree of stand or trees designated significant shall not be removed or altered without prior consultation and advice of a certified tree professional.

Section 7. Adjacent owner rights and responsibilities.

- (a) No property owner shall allow a tree or other plant growing on their property or within the adjacent parkway to obstruct or interfere with pedestrians or the view of drivers, thereby creating a hazard. If an obstruction persists, the Director shall notify the property owner in writing of the need to prune or remove the tree or plant. If the owner fails to comply with the notice within 30 days of receipt of such notice, the City may undertake the necessary work and charge the cost to the property owner.

- (b) The owner of the abutting property will be given the “right of first refusal” for the wood from such cutting on or abutting the property.

- (e) If a tree is located in the right-of-way but is not (in the determination of the Director) a public nuisance or a safety hazard, then the municipality is under no obligation to remove it, even if the abutter requests removal. However, should an abutter determine that a tree located in the right-of-way is a safety hazard to the abutter’s property, the abutter may be permitted to remove such tree at the abutter’s sole cost with the advance written permission of Public Works and a release of all City liability for the removal.

- (f) If a tree straddles the boundary between the right-of-way and private property, the City and the property owner may negotiate a division of the cost of removal, but in no circumstances shall the City be obligated to pay more than one-half of the removal cost.

Section 8. Damage to public trees.

Upon finding that any unauthorized person, firm, or corporation has:

1. damaged, removed, or caused the damage or removal of any tree on public property
OR
2. attached any cable, wire, signs, or any other object to any tree on public property OR
3. “topped” any public tree,

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The city Director (who is charged by this policy with monitoring and maintaining such public tree) shall notify the Claremont Police Department of this potential criminal activity. *See N.H. Rev. Stat. Ann. §227-J:8-a.*

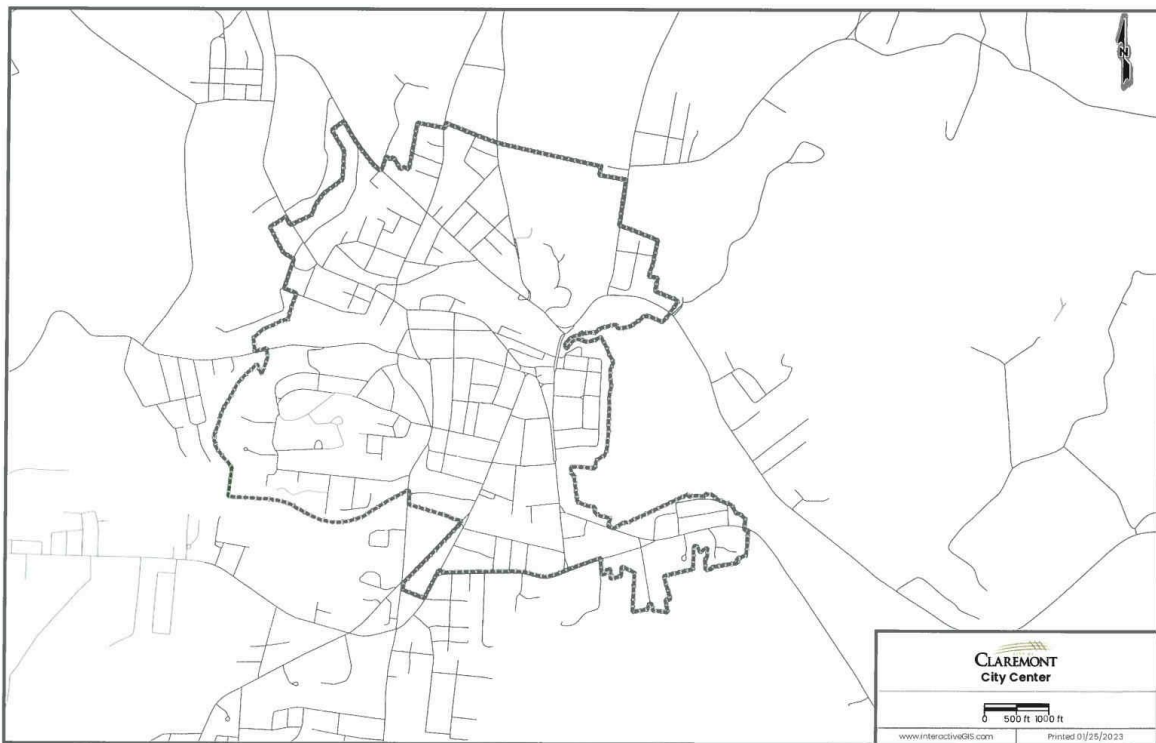
Furthermore, this Director shall notify the City Manager of this event and may request that the City Manager consult with legal counsel concerning the possibility of pursuing civil penalties associated with such action pursuant to [RSA 227-J:8](#) (or its legal equivalent if there is a change in the statutory scheme).

Section 9.

The City of Claremont will maintain the trees in the right-of-way to the best of its ability, staffing and budget considerations permitting, but it cannot be responsible for the consequences of “Acts of God” or emergencies, unpredictable hazards, and extreme weather events. The City maintains 252± lane miles of public roads, most of which have trees along them.

Communication and cooperation between the City and Claremont’s landowners are essential for preserving and maintaining roadside trees and other vegetation, which provide us with a protective canopy that helps make Claremont a safe, healthy, and attractive place to live.

Appendix A – City Center Map



Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

Appendix B – Parkway

Parkway – the area along a public street between the curb and the sidewalk;
or if there is no curb or sidewalk, the unpaved portion of the area between the street right-of-way
line and the paved portion of the street or alley.



P:\Resource Coordinator\Conservation Commission\TREE POLICY\Tree Policy_3 16 23.DOCX

A motion was made by Councilor Stone and seconded by Councilor Batchelder to accept the tree policy as written.

Roll call

O’Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - No

Koloski - No

Limoges – Yes

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MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

Contois - No
Mooshian - No
Girard - Yes
Motion carried 5-4

Discussion of 1765 Claremont Proprietors Records and Charter Book



August 3, 2023

deForest Bearse
City of Claremont
14 North Street
Claremont, NH 03743

Re: NEDCC Job #23-222_BI

Dear Ms. Bearse,

Enclosed is our condition report and estimate for the treatment of one record book, including a digital imaging addendum.

- The recommended conservation treatment is listed in the body of the proposal and we consider each step of the recommended treatment necessary for preservation of the object. The conservators at the Northeast Document Conservation Center work as efficiently and safely as possible and within guidelines set by the American Institute for Conservation.
- Please note that there are several places in the proposal where we ask that you check a box to indicate a preference for how you would like us to proceed under certain conditions.
- Once the work begins, should we encounter the unexpected and need to revise this treatment proposal you will be consulted immediately.
- Please enter the appropriate insured value in the space provided. Unless your insurance company sends NEDCC a waiver of subrogation, all objects left here will be insured under our policy. If no insurance figure is received from you, we shall assign a value of \$500 to the project.
- If you want NEDCC to proceed with the recommended treatment, please sign the proposal and return it with your 33% deposit at your earliest convenience. Municipalities may waive the deposit upon request.

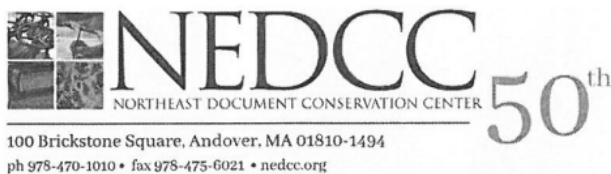
We hope to hear from you soon. Please do not hesitate to call if you have questions. We are happy to answer inquiries about scheduling or the treatment or care of objects.

Sincerely,

A handwritten signature in dark ink, appearing to be a stylized "A" or "B" with a long, sweeping tail.

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City of Claremont
City Hall
14 North Street
Claremont, NH 03743

August 3, 2023
Project # 23-222_BI

Contact: deForest Bearse
dbearse@claremontnh.com
603-504-0341

Object

record book

Title: Claremont Proprietors' Records and Charter ~ c.1765
onward

Dimensions: 315x200x30mm

No. of Pages: ~250 (~120 w/ entries)

Current Condition

The volume is bound in a full reverse-calf binding with blind tooled borders on the covers and turn-ins. A title, now partly illegible, is written in ink on the front cover, and a typescript paper label is adhered to the spine. The cover boards are slightly warped. Two areas of leather are missing from the head and tail of the spine. The leather is worn and dirty overall and is partially split at the front joint and worn through at the board corners. The exposed board corners are soft and delaminating. The inner hinges are broken. The pastedowns and flyleaves are chipped and discolored along the edges. A paper label is tipped to the front pastedown.

The text block consists of handmade paper gathered into sections and sewn through the fold onto leather sewing supports. The sewing is largely intact, but the spine folds of the first few sections are split and approximately 18 leaves are held into the volume with pressure-sensitive tape. Entries are written in a variety of inks on pages 29-144 and pages 207-210; the remaining pages are blank. Some of the inks are very faint and others are showing signs of iron gall ink corrosion including burn-through and acid migration. Where tested, the inks are strongly positive for the presence of free iron ions. The pages with entries are discolored along the edges and have surface dirt and embedded grime. Many leaves, especially in the first third of the volume, are brittle, chipped and torn along the edges. The pressure sensitive tape holding the leaves into the volume is discolored and has caused staining. Oozing tape adhesive has caused some leaves to stick together, limiting opening. In addition to the pressure-sensitive tape, several leaves have been repaired with glassine tape and/or strips of paper adhered with glue. Tape is adhered over text in many places. A manuscript document is tipped to one blank leaf with glue.

Conservation Treatment Plan

- Provide written and photographic documentation before and after treatment.
- Collate (note order, number only unpaginated leaves discreetly in pencil).
- Disbind (remove sewing and separate sections).
- Surface clean pages to reduce surface dirt.

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- Test solubility of media.
- Treat as necessary to remove pressure-sensitive tape and reduce adhesive staining. (~72").
- Wash leaves in ethanol and filtered water to remove glassine and paper mends and to reduce discoloration as possible. For leaves with manuscript ink, follow with calcium phytate treatment to stabilize the iron gall ink. Alkalize all pages in a calcium carbonate bath, and size with a 1% solution of gelatin.
- Mend tears, guard folds and reattach tipped document as necessary using Japanese paper and starch paste (~280 mends & guards).
- Reassemble text and press to consolidate.
- Add handmade paper endsheets with linen hinges and sew text block with linen thread.
- Bind in cloth using a case structure.
- Title volume using a gold stamped leather label. (Unless otherwise changed, title will appear as on attached sheet.)
- Construct a wrapper to dimensions of previous binding.
- Construct a custom-fitted archival box to dimensions of volume and previous binding. Title box. (Unless otherwise changed, title will appear as on attached sheet.)

Optional Work

Digital Imaging/Printing

The optimal time to perform digital imaging of your volume(s) is during conservation so that the best image capture can be obtained in the safest manner. Please see the attached Imaging Addendum for imaging specifications and cost estimate(s).

Cost Summary

Recommended	(Please check.)	
Conservation Treatment	Yes ____ No ____	\$15,255
Optional Work (These can only be carried out if the corresponding treatment above is also selected.)		
Digital Imaging/Printing	Yes ____ No ____	See addendum
Additional Insurance (indicate value in Terms, below)	Yes ____ No ____	\$1/\$1,000/mo.

Terms & Conditions

It is understood and agreed between the parties to this agreement that the work may be halted should unexpected problems render the proposed scope and/or activities infeasible or more time-consuming than could be reasonably estimated. If this were to occur, modifications to the scope and/or activities may be proposed, and, after consultation with the Owner or Authorized Agent, a new estimate may be given to reflect revised specifications. **Estimates are valid for 12 months. Costs of shipping/handling and unframing/reframing services are additional. NOTE: One third of the estimated cost is payable at the time of approval.**

Pick-up or shipping/handling of objects shall be at Client's/Owner's expense and must occur within 90 days after either notification of completion of work or notification that objects associated with unapproved proposals must be picked up (or delivery effected). All charges for contracted services, including shipping/handling and insurance, must be paid prior to NEDCC releasing objects for return. **Storage fees of \$125.00 per month shall be charged after expiration of the 90-day period. In consideration for waiver of such storage charges, failure of Client/Owner to pick up (or effect delivery) within six months of a third notification or attempted notification by NEDCC by certified mail at Client's/Owner's last known address shall constitute transfer of title of objects to NEDCC.** Long-term arrangements for storage at a fee must be made by separate agreement to avoid such transfer of title. Client/Owner must inform NEDCC of any changes of address.

CLIENT'S/OWNER'S STATEMENT OF INSURANCE VALUE: Maximum liability limited to \$_____. Unless Owner's insurance policy provides standard "all risk perils" and Owner's insurance company sends NEDCC a waiver of

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THE UNDERSIGNED AGREES TO INDEMNIFY AND HOLD NEDCC HARMLESS FROM ALL CLAIMS AND DEMANDS FOR LOSS OR DAMAGE TO THE ABOVE OBJECTS HOWEVER OCCASIONED UNLESS DUE TO THE WILLFUL NEGLIGENCE OF NEDCC. IN NO EVENT SHALL NEDCC BE LIABLE TO ANY PARTY FOR ANY SPECIAL, PUNITIVE, INDIRECT, INCIDENTAL, OR CONSEQUENTIAL DAMAGES.

The undersigned recognizes that conservation treatment procedures may involve a certain amount of risk. Therefore, in further consideration, and as a condition of NEDCC's undertaking the work on the above object(s), the undersigned waives and releases NEDCC from all claims that may arise due to damage or loss to the above object(s) as a result of the treatment procedure(s).

NEDCC represents that it is not the Owner of objects that will be digitized and Client/Owner agrees that NEDCC is not responsible for any potential or real copyright infringement as a result of digitizing the objects. Compliance with copyright law is the sole responsibility of Client/Owner. NEDCC hereby conveys copyright, if any, in the digital objects to Client/Owner. The undersigned hereby grants permission to NEDCC to use the record of the proposed work, including imagery, for its educational programs.

AUTHORIZATION IS HEREBY GIVEN to the NORTHEAST DOCUMENT CONSERVATION CENTER to treat and/or digitize the above object(s). It is acknowledged that the undersigned has read and understands the proposal and all terms and conditions herein.

Owner or Authorized Agent

Date

8/3/2023

Bexx Caswell-Olson, Director of Book Conservation, NEDCC

Date

P.O.# required? Yes _____ No _____ # _____

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IMAGING ADDENDUM

Subject to Conservation

The condition of historic and artistic objects is one of the most important factors in determining how (or whether) they can be accurately imaged without causing physical damage. Consequently, this imaging addendum is subject to prior conservation treatment under this proposal.

Image Count

The “image count” corresponds to the number of digital files that will be produced. This proposal is based on the estimated image counts in the Cost Summary, below. *Please check the appropriate box, below, to indicate how you would like us to proceed if the image count differs from this estimate.*

- ☐ Complete the imaging of all items and adjust the invoice based on the actual image count.
- ☐ Proceed with imaging up to a maximum of 10% over the estimated image count and adjust the invoice accordingly. Please notify me if/when you have reached this limit.
- ☐ Image the items in the priority order provided and stop imaging once the estimated image count is reached. Please notify me if/when you have reached this limit.

Blank Pages/Versos

We will image the original covers as well as the recto and verso of all leaves with content and occasional blank leaves. Groups of blank leaves (3 or more) will not be imaged unless otherwise requested.

Project Scope

Following accepted best practices, the purpose of our service is to create a faithful image surrogate of archival materials in their current condition.

The objects identified above will be imaged using a medium format digital camera with apochromatic macro flat field optics on our specialized workstations. The light source will be Broncolor electronic flash, providing optimal light quality at minimal total light exposure. Imaging will be done following the Federal Agencies Digitization Guidelines Initiative (FADGI) *Technical Guidelines for Digitizing Cultural Heritage Materials* (2023) and the following project specifications:

Preservation Files

Format: TIFF
Spatial Resolution: 400 ppi at original size
Bit Depth: 16-bit
Color Profile: Adobe RGB 1998

Access Files

Format: JPEG
Spatial Resolution: 400 ppi at original size
Bit Depth: 8-bit
Color Profile: Adobe RGB 1998

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patches of varying hues, saturations, and brightnesses; 12 spectrally neutral gray patches; vertical and horizontal slant edge targets for calculating spatial frequency response (SFR); and metric- and English-based rulers for scale and calculating optical resolution.

Cropping

Images of reflective media will be cropped to include a small border around the edges of the object. Reference targets will be removed in the final deliverable files.

Metadata

Technical metadata comprising camera and software information will be embedded in the header of each TIFF master file.

File Naming

Files will be named with a descriptive prefix plus sequential numerical suffix.

Special Conditions

Spatulas and/or weights may be used to gently hold down pages that do not lie flat on their own.

Quality Control

All work will be performed under tight environmental control in the NEDCC imaging laboratory by highly-skilled professionals, and objects will remain in the NEDCC vault when not being imaged. NEDCC performs a 100% inspection of deliverables, done by Associate and Senior Photographers. All files will be backed up on NEDCC's servers for six (6) months after project completion.

Delivery Medium

The digital files will be delivered on a USB flash drive.

Cost Summary

Project Scope	<u>\$/Unit</u>	<u>Quantity</u>	<u>Total</u>
Project Set-up	\$200	1 set-up	\$200
Preservation Files	\$6	130 files	\$780
Access Files	\$0	130 files	\$0
PDF	\$0	1 file	\$0
USB Flash Drive	\$50	1 drive	\$50
TOTAL (if all checked "Yes")			\$1,030

NOTE: Please return to the Cost Summary on Page 3 and select "Yes" or "No" for Digital Imaging.

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TITLE SHEET

Client: City of Claremont

Job No: 23-222_BI

Item No.: 001

Title information will appear as illustrated below. Any revisions should be made in the space provided. Please sign the sheet and return with signed treatment authorization form. The recommended title will be used if the revision form is not returned.

Client Signature: _____ Date: _____

BOOK:

☒ Probable label placement (see diagram below)

Recommended title:

PROPRIETORS' RECORDS ~ c. 1765

Client's revision:

BOX:

☒ Probable label placement (see diagram below)

Recommended title:

PROPRIETORS' RECORDS ~ c. 1765

Client's revision:

LABEL PLACEMENTS:

1. 1. Horizontal label along

Notes:

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Manager Manale provides some history of the Charter Book. The city is hoping to get a state grant for preservation and will also include this in the budget for next year.

Councilor Batchelder questioned if the price includes digitization of the book.

City Manager Manale stated It does not but it is already online.

Councilor Koloski inquired if the City has a Record viewing policy for the City and would like to see the Policy Committee come up with something for policy records.

Resolution 2024-12

Director Mulholland explains Resolution 2024-12.

Councilor stone asked for a timeline of demolition.

Manager Manale stated once the money is allocated demolition will be started,

Councilor Contois raises the question if the City is going to keep the properties,

Manager Manale mentions putting them up for auction.

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
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RESOLUTION 2024-12

Demolition of City Property American Rescue Plan Act of 2021 (ARPA) Withdrawal

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that:

WHEREAS there is a need to fund demolition of three city owned properties due to code violations and safety concerns;

WHEREAS grant funding is available to cover \$105,000 in demolition costs through the InvestNH program at \$35,000 per building, but the low bid for the project totals \$139,237;

NOW THEREFORE BE IT RESOLVED by the City Council to raise, appropriate and expend the sum of up to \$34,237 from the American Rescue Plan (ARPA) grant fund (to have no impact on the tax rate); and

BE IT FURTHER RESOLVED to authorize the City Manager or the Treasurer, or their designees, to withdraw said funds from the ARPA grant fund; and

BE IT FURTHER RESOLVED that the city manager, or his designees, are hereby authorized to undertake all actions and execute all documents as may be required to implement this resolution.
(2/3 Vote Required)

Dated this 13th day of September, 2023, the City of Claremont, County of Sullivan, State of New Hampshire.

A motion was made by Councilor O’Hearne and seconded by Councilor Batchelder to adopt Resolution 2024-12.

Councilor O’Hearne read resolution into the record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

O’Hearne -Yes

Batchelder - Yes

Stone - Yes

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

Matteau - Yes
Koloski - Yes
Limoges - Yes
Contois - Yes
Mooshian - Yes
Girard - Yes
Motion carried 9-0

Resolution 2024-13

Fire Chief explains Resolutions.

RESOLUTION 2024-13

Non-Capital Reserve Transfer to 001-422-422290-0000 for Traffic Light Signals

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that

WHEREAS, in July 2018, the City established a Non-capital Reserve Fund for Traffic Signals within the City of Claremont; and

WHEREAS, the City needs to maintain and upgrade traffic signals for the safety of its citizens and the traveling public and doing so will take significant resources; and

NOW, THEREFORE, BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, to transfer and appropriate the sum of up to \$23,000 to be taken from the Non-capital Reserve Fund for Traffic Signals to the Fire Department line item 001-422-422290-0000 with no impact on the tax rate, to continue to repair traffic signals through the duration of FY2024 (with no impact on the tax rate); and

BE IT FURTHER RESOLVED that the City Manager, or his designees, are hereby authorized to undertake all actions and execute all documents as may be necessary to implement this resolution. *(2/3 Vote Required)*

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Dated this 13th day of September, 2023, in the City of Claremont, County of Sullivan, State of New Hampshire.

A motion was made by Councilor Contois and seconded by Councilor Limoges to adopt Resolution 2024-13.

Councilor Contois read resolution into the record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

O’Hearne -Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois - Yes

Mooshian - Yes

Girard - Yes

Motion carried 9-0

COMMITTEE REPORTS

Assistant Mayor Matteau- shared the planning board met twice and discussed driveway regulations. Discussed enforcement issues.

Councilor Stone stated Policy Committee met and discussed finalizing the updating of the cemetery policy.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Koloski Green Burials

Summer street parking

Councilor Koloski-Summer Street pavement markings for parking
City website

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Kevin Tyson Ward 2- Explains how to look on the website easier.

Assistant Mayor Matteau Parking on Park Ave

Councilor Stone would like to see Director Lawrence and Director of Welfare at the first meeting in October.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 8:48 p.m., a motion was made by Councilor O’Hearne and seconded by Councilor Batchelder to adjourn.

Voice vote:

O’Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges – Yes

Contois - Yes

Mooshian - Yes

Girard - Yes

Motion carried 9-0

Respectfully Submitted,

Jamie L. Foster De Rosa
Acting Clerk to the Council